

This diagnostic playbook provides Skid Row caseworkers, legal advocates, and outreach teams with an actionable framework for preventing evictions, preserving families, and coordinating critical medical care. Built on local legal victories like *Jones v. City of Los Angeles* and habitability standards from *Washington v. Renato Apartments, LP*, these forms build an administrative perimeter around our most vulnerable neighbors.

1. KEY LEGAL DEFENSES & HABITABILITY STANDARDS

Habitability & Slum Litigation (Renato Precedent): SRO residential hotels have historically served as the bedrock of Skid Row's affordable housing. However, the collapse of the Skid Row Housing Trust in April 2023 and the subsequent receivership of its 29 properties triggered severe habitability crises. Under the landmark lawsuit *Washington v. Renato Apartments, LP* (filed December 12, 2024), operators built with public loans were held legally accountable for severe neglect. Unsecured entrances, broken elevators trapping disabled and elderly residents, raw sewage floods, mold, and vermin infestations constitute severe habitability breaches. Caseworkers must document these defective conditions (using Page 4 of this packet) to mount an absolute affirmative defense against unlawful detainers.

The Sidewalk Possession & Sleeping Right: In *Jones v. City of Los Angeles* (2006), the Ninth Circuit ruled that punishing individuals for sleeping, lying, or sitting on public sidewalks when no shelter is available constitutes cruel and unusual punishment under the Eighth Amendment. The subsequent compromise permits sidewalk sleeping from 9:00 PM to 6:30 AM (at least 10 feet from business or residential entrances). Additionally, a May 2019 agreement officially removed limits on the number of non-bulky personal possessions residents can keep on the street, requiring a 90-day storage period for any seized items.

2. DPSS EVICTION PREVENTION PROGRAMS

CalWORKs Emergency Assistance to Prevent Eviction (EATPEP): Low-income families facing immediate eviction due to temporary financial hardships (unexpected medical expenses, sudden job loss) can access EATPEP rent-arrears assistance. Caseworkers must submit immediate proof of hardship and the formal eviction notice to the DPSS eligibility worker to bypass standard processing times.

Moving Assistance Program (MAP) & THAP+14: MAP provides up to a one-time allocation for security deposits, utility hookups, and moving expenses for families transitioning from homelessness. The Temporary Homeless Assistance Program (THAP+14) grants up to 14 consecutive nights of emergency hotel vouchers while families actively seek permanent housing.

3. MEDICAL CARE COORDINATION & IN-HOME SUPPORT

Form SOC 873 Prerequisite: To authorize In-Home Supportive Services (IHSS) care hours for disabled seniors, the state of California strictly requires a licensed medical professional to complete and sign the SOC 873 Health Care Certification form. The physician must certify that without in-home personal care (including meal preparation, laundry, housekeeping, and non-medical transportation), the senior is at high risk of institutionalization.

Protective Supervision Certification: For seniors exhibiting severe cognitive impairment, memory loss, or extreme indecision (frequently seen in dementia or advanced mental illness), doctors must document the need for 24-hour monitoring. Certifying Protective Supervision on the SOC 873 unlocks the maximum threshold of compensated care hours (up to 283 hours monthly), ensuring vulnerable individuals remain safely housed.

HEALTH CARE CERTIFICATION

FORM SOC 873 (REVISED)

INSTRUCTIONS FOR MEDICAL PROFESSIONAL: This form must be completed and signed by a licensed physician, physician assistant, or nurse practitioner. It is a mandatory requirement to establish eligibility for In-Home Supportive Services (IHSS) under California Welfare and Institutions Code.

PATIENT (CLIENT) GENERAL INFORMATION

Patient Name (Last, First, Middle):	Date of Birth (MM/DD/YYYY):
Street Address / SRO Unit No:	Social Security Number (SSN):
Authorized Representative (if applicable):	Contact Phone / SafeLink No:

CLINICAL ASSESSMENT & FUNCTIONAL LIMITATIONS (TO BE COMPLETED BY CLINICIAN)

1. Chronic Medical / Psychiatric Diagnoses: ☐ Dementia / Cognitive Decline ☐ Severe Schizophrenia / Psychosis ☐ Physical Disability / Paraplegia ☐ Substance Use Disorder (SUD)	ICD-10 Code(s): _____
2. Activities of Daily Living (ADL) Unmet Needs: ☐ Meal Preparation ☐ Housekeeping ☐ Laundry ☐ Bathing & Dressing ☐ Ambulation Assistance ☐ Bowel/Bladder Care	Functional Index Rank: Rank 1-5 (Severe limitation): ADL Rank: _____
3. Cognitive Impairment & Defensive Needs: Does the patient exhibit memory loss, disorientation, or severe indecision? ☐ YES ☐ NO If yes, is 24-Hour Protective Supervision required to prevent injury? ☐ YES ☐ NO	Detailed Behavioral Notes: _____ _____ _____

CLINICIAN CERTIFICATION & ARTESTATION

I certify under penalty of perjury that the clinical information provided herein is true and accurate. In my professional judgment, this individual requires personal care and/or protective supervision to remain safely in their home and prevent institutionalization.	Clinician Signature: _____ Date: _____
Medical Practitioner Name: _____	National Provider Identifier (NPI): _____
Clinic Name / Health Facility: _____	State License Number: _____

EMERGENCY ASSISTANCE REQUEST

DPSS EATPEP / MAP / THAP+14

INSTRUCTIONS FOR CASWORKER / APPLICANT: Complete this request to apply for DPSS Emergency Assistance to Prevent Eviction (EATPEP) or the Moving Assistance Program (MAP). Submit the completed form along with a copy of the formal 3-Day or 15-Day Eviction Notice and documented proof of unexpected financial hardship.

APPLICANT & DPSS CASE INFORMATION

Primary Applicant Name (Last, First):	DPSS Case Number:
CalWORKs Aid Code (e.g., K1, 3F, etc.):	CalSAWS Case Serial:
SRO Housing Landlord / Property Name:	Monthly Rent Amount: \$ _____

EMERGENCY ASSISTANCE REQUEST TYPE

☐ EMERGENCY ASSISTANCE TO PREVENT EVICTION (EATPEP) Requesting financial assistance to pay back rent and utility arrears. Total Past Due Rent Owed: \$ _____ Number of Months Past Due: _____	Hardship Documentation: ☐ Copy of Eviction Notice attached ☐ Proof of Hardship attached (e.g., medical bill, layoff letter, auto repair bill, etc.)
☐ MOVING ASSISTANCE PROGRAM (MAP) Requesting funds for transitioning from homelessness to permanent SRO housing. Requested Security Deposit: \$ _____ Requested Utility Hookups: \$ _____	Move-In Documentation: ☐ Unsigned SRO Rental Agreement attached ☐ Landlord W-9 Form attached
☐ TEMPORARY HOMELESS ASSISTANCE (THAP+14) Requesting immediate emergency hotel/motel vouchers for transition. Current Encampment Location: _____ Requested Start Date: _____	Status: ☐ Family with minor children ☐ Pregnant person (unborn child)

CLIENT DECLARATION & CASWORKER ATTESTATION

Unexpected Hardship Statement: Please explain the unexpected financial difficulty that prevented you from paying your rent or securing stable housing: _____ _____ _____	Applicant Signature: _____ Date: _____
Caseworker / Authorized Representative Certification: I have reviewed this application and verified that the attached eviction notice and proof of hardship are valid. This household is at immediate risk of homelessness without DPSS emergency intervention.	Caseworker Name & Title: _____ Signature: _____

TENANT HABITABILITY DECLARATION

LEGAL EVICTION DEFENSE / ICLC REFERRAL

LANDLORD NOTICE OF DEFECTIVE CONDITIONS: This form serves as a formal declaration documenting habitability violations and landlord neglect at supportive housing or SRO properties. Under California Civil Code Section 1941.1 (and the precedent established in *Washington v. Renato Apartments, LP*), these conditions constitute a complete affirmative defense against eviction for non-payment of rent.

PROPERTY & TENANT DETAILS

Tenant Name (Declarant):	SRO Hotel Name / Apartment Name:
Building Street Address & Unit No:	Landlord / Management Company Name:
Date Eviction Notice Served:	SRO Operator / Receivership Representative:

DOCUMENTED SUBSTANDARD & HABITABILITY VIOLATIONS

☐ ELEVATOR OUTAGE / ACCESS FAILURE:

The sole building elevator has been broken, trapping elderly and disabled residents in upper-floor rooms.

Date Elevator Failed: _____ Duration of Outage: _____ days

☐ PEST & VERMIN INFESTATION:

Severe, unaddressed infestations of:

☐ Bedbugs | ☐ Cockroaches | ☐ Rodents

Management failed to provide professional pest control.

☐ RAW SEWAGE & PLUMBING FLOODS:

Active toilet overflows, clogged drainage lines, or raw sewage flooding inside residential units or communal bathrooms.

Description: _____

☐ WATER INTRUSION & TOXIC MOLD:

Active roof leaks, window leaks, or internal pipe bursts resulting in crumbling drywall and visible mold growth.

Rooms Affected: _____

☐ UNSECURED ENTRIES & SAFETY RISK:

Main entry doors or security gates are broken/unlocked, allowing trespassers to enter common hallways, commit theft, or deal drugs.

☐ Broken Unit Door Locks | ☐ Broken Fire Alarms

☐ HAZARDOUS DEBRIS / BIOHAZARDS:

Hallways, stairwells, or courtyards littered with:

☐ Human/Animal Feces | ☐ Used Syringes / Sharps

☐ Failure to clean up trauma/suicide remains

TENANT ATTESTATION & SERVICE RECORD

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. I have repeatedly notified building management of these substandard conditions, yet they have failed or refused to make the necessary repairs to restore habitability.

Tenant Signature:

Date: _____

Legal Aid Referral Status: This declaration has been submitted to:

☐ Inner City Law Center (ICLC)

☐ Legal Aid Foundation of Los Angeles (LAFLA)

☐ Staying Housed LA Program

Advocate Witness:

Date: _____